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CASE #	CASE NAME	HEARING NAME
CVPS2408288	NAVARRO VS FCA US LLC, A DELAWARE LIMITED LIABILITY COMPANY	MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION, SET TWO, FROM DEFENDANT FCA US LLC, AND REQUEST FOR SANCTIONS BY RAUL NAVARRO

Tentative Ruling: Denied.

Moving party to provide notice pursuant to CCP 1019.5.

Plaintiff, Raul Navarro, alleges that on 12/14/21, he entered into a warranty contract with Defendant, FCA US, LLC (FCA) regarding a 2021 Jeep Gladiator. The Complaint alleges that defects and nonconformities to warranty manifested within the express warranty period that impaired the use, value, and/or safety of the vehicle. Plaintiff presented the vehicle to an authorized FCA repair facility but, it was unable to conform the vehicle to warranties after a reasonable number of repair attempts. Plaintiff filed his Complaint on 12/26/24 alleging three causes of action: 1) violation of the Song Beverly Act (SBA) – breach of express warranty; 2) violation of the SBA – breach of the implied warranty; and, 3) negligent repair (as against Defendant, Imperial Valley Chrysler Dodge Jeep RAM only.)

Plaintiff, Raul Navarro, brings the instant motion to compel further responses to Requests for Production of Documents (Set Two) RFPs Nos. 47-60. (CCP §§ 2030.300; 2031.310.) Plaintiff argues that FCA has asserted only objections, failed to provide Code-compliant responses, and has not responded to meet and confer efforts. Plaintiff seeks information regarding FCA's backup procedures, preservation efforts, and retention policies. Plaintiff also seeks sanctions of \$1,985.00.

Defendant, FCA, opposes the motions arguing that Plaintiff has not demonstrated good cause for the information he is requesting; that FCA has provided responses to discovery but, the subject "discovery on discovery" requests are not permitted; and, that monetary sanctions are unwarranted.

The Reply asserts that FCA has caused delay, shifted positions, and refused to comply with its discovery obligations; that FCA agreed to provide supplemental responses but, then refused to comply with its representations; and re-asserts prior arguments.

Motion to Compel Further Response(s)

CCP § 2030.300, and § 2031.310 provide that where a responsive party serves a discovery response to interrogatories, or requests for production of documents that is evasive, incomplete, or an objection is without merit, the propounding party can move to compel a further response. (*Wimberly v. Derby Cycle Corp.* (1997) 56 Cal.App.4th 618, 636.)

In a motion to compel a further response as to *document requests*, the moving party must state facts demonstrating good cause justifying the discovery sought by demonstrating relevance and specific facts justifying discovery. (CCP §2031.310(b)(1); *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) The burden to show good cause for production "is met simply by a fact-specific showing of relevance." (*Tbg Ins. Servs. Corp. v. Superior Court* (2002) 96 Cal.App.4th 443, 448.) Once good cause is established, the responding party has the burden to justify any objections. (*Kirkland, supra*, 25 Cal.App.4th at 98.)

A motion to compel further responses to an interrogatory, request for production of documents, or to requests for admission must be accompanied by a meet and confer declaration. (CCP § 2030.300(b), § 2031.310(b).) The declaration must state facts showing a “reasonable and good faith attempt, *either in person, by telephone, or by videoconference*” to resolve informally the issues presented by the motion before filing the motion. (CCP § 2016.040.) “The purpose of the meet and confer requirement is to force lawyers to reexamine their positions, and to narrow their discovery disputes to the irreducible minimum, before calling upon the court to resolve the matter.” (Weil & Brown, CPG: Civ. Proc. Before Trial (TRG 2026) §8:1159 citing, *Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1016-2017.)

On 10/16/25, Plaintiff sent FCA his second set of special interrogatories and requests for production of documents. (Dec. Leite ¶ 3, Ex. “A”.) On 11/21/25, FCA served its responses. (*Id.* ¶ 4, Ex. “B”.) On 12/12/25, Plaintiff sent a meet and confer letter to FCA detailing the deficiencies in FCA’s responses, providing a deadline, and requesting an extension of the motion deadline, which FCA consented to by email. (*Id.* ¶ 5, Exs. “C”-“D”.) On 1/6/26, Plaintiff met and conferred with FCA by phone during which, defense counsel agreed to produce a Person Most Qualified (PMQ) on identified topics and to serve supplemental responses within thirty days including the retention timeframe and identity of any department responsible for maintaining such materials; and, the motion deadline was again continued. (*Id.* ¶ 6, Ex. “E”.) Meet and confer efforts and extensions continued. (*Id.* ¶¶ 7-9, Ex. “E”.)

Then, on 3/3/26, defense counsel informed Plaintiff’s counsel that it would no longer be providing supplemental responses; FCA agreed to another motion extension. (*Id.* ¶ 10, Ex. “E”.) Despite these sufficient meet and confer efforts, the discovery dispute could not be resolved.

RFP Nos. 47-48 seek documents described in SPROGS Nos. 47-48(e.g., preservation letters.)

RFP No. 49 seeks activity log files on FCA’s network regarding repurchase or replacement of the subject vehicle.

RFP Nos. 50-54 seek documents concerning the backup procedures for critical business data like customer call logs to ensure chain of custody of evidence.

RFP Nos. 55-60 seek documents concerning FCA’s retention policies and procedures and databases where they are stored to evaluate repurchase or replacement under the SBA from 2023 to present.

In response to the requests for production, FCA asserts the same set of objections on grounds that these interrogatories are vague and ambiguous as to the term “YOUR” to the extent that it includes entities not owned or operated by FCA or its agents; overly broad; and, seek irrelevant information that is not limited to FCA dealerships, the repairs, or services at issue in this case. These objections are generally not well-taken in a lemon law case. However, due to the nature of the discovery being sought here, they appear to be well-taken. This is because of FCA’s additional “discovery on discovery” objection.

FCA argues that this discovery seeks impermissible “discovery on discovery” or “meta-discovery”, which is generally not permitted according to some federal court decisions. FCA argues that Plaintiff improperly seeks “discovery on discovery” also known as “meta discovery”, which could potentially extend the discovery process “ad infinitum.” (see *Jensen v. BMW of N. Am., LLC*, 328 F.R.D. 557, 566 (S.D. Cal. 2019) [“Discovery into another party’s discovery process is disfavored.”]) This type of discovery is generally only permitted where there is an indication that it has been insufficient or deficient. While this federal authority is persuasive, California law permits discovery of the identity and location of persons having knowledge of any discoverable matter, as

well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property. (CCP § 2017.010.) Thus, the CCP expressly provides for at least some “discovery on discovery.”

Here, FCA asserts that it stands by its objections including the “discovery on discovery” objection. In response, Plaintiff argues that he is NOT seeking “discovery on discovery” but, is trying to verify the completeness and good faith of FCA’s responses. He asserts he is seeking “objective, non-privileged information reflecting FCA’s ordinary policies and practices governing preservation, searching, backup, and retention of records FCA relies upon to evaluate repurchase or replacement requests under the Song-Beverly Consumer Warranty Act.

In propounding this discovery, Plaintiff questions whether FCA’s discovery responses were sufficient. However, Plaintiff has not explained the reasons for his doubts or concerns about the sufficiency of FCA’s responses in this case. Plaintiff asserts that this motion is about FCA’s document retention, preservation, and search practices to ensure relevant materials have not been omitted, inconsistently produced, or withheld. California law allows discovery into retention, preservation, and search practices where the adequacy or completeness of a party’s production is at issue. However, this discovery is *all about* retention, preservation, and search practices where the inadequacy or incompleteness has not yet been established.

All Plaintiff asserts is that Plaintiff’s counsel’s firm and FCA “routinely litigate” SBA actions against each other, and Plaintiff has observed varying and inconsistent productions by FCA across these numerous Song-Beverly cases, raising legitimate questions as to whether FCA’s search, retention, and preservation practices are being applied consistently in every case, including this one. Thus, Plaintiff is using its second set of discovery in this case to establish a pattern and practice by FCA of routinely providing inadequate or incomplete discovery responses/responsive documents in all cases FCA is defending. Plaintiff cites no authority to use discovery in this case for that broader purpose. As a result, the “discovery on discovery” objection is well-taken and must be sustained. As a consequence, the objections on grounds of overly broad and lack of relevance are also well-taken, and are also sustained. No further responses are required.

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